

Mark A. Garcia
7403 Creekbluff Dr
Austin, TX 78750
[REDACTED] · [REDACTED]

[Date: TBD]

NYOS Charter School
Attn: Public Information Act Request
12333 N Lamar Blvd
Austin, TX 78753
openrecords@nyos.org

Re: Texas Public Information Act Request — Request 3 of a series. Materials supporting the December 10, 2024 ratification of the DSS audit-support contract (item 5.b) and the July 24, 2025 approval of the DSS Consulting Group contract (item 7.b.i).

Dear Public Information Officer:

Pursuant to the Texas Public Information Act, Texas Government Code Chapter 552, and as applied to open-enrollment charter schools by Texas Education Code § 12.1051, I respectfully request the following public information from NYOS Charter School, Inc.

This is one of a planned series of narrowly-scoped requests. Submitting them in sequence is intended to ease your office's workload and to allow rolling production of records as they are located. The records sought below are limited to the specific subject described in the Re: line.

Records sought

1. Complete minutes and all back-up materials for the **December 10, 2024 regular board meeting**, with particular attention to **item 5.b** as recorded: "Ratify and approve expenditures and DSS audit support contract as to be amended." This includes:
 - a. The motion text as approved, the trustee who moved it, the trustee who seconded, and the recorded vote tally.
 - b. The DSS audit-support contract itself, in the form ratified, including any attached exhibits, fee schedules, and statements of work.
 - c. The substance of the amendments referenced in the motion ("as to be amended") — including any redlined drafts, amendment memoranda, or final approved amendment language.
 - d. The expenditures ratified by the motion: invoices, purchase orders, payment records, or accounting entries that pre-dated the December 10, 2024 vote.

2. Complete minutes and all back-up materials for the **July 24, 2025 regular board meeting**, including each of the following items:
 - a. Item 7.b.i — “Approve the DSS Consulting Group contract” (under “contracts over \$50,000”): the contract as approved, the motion text, mover, seconder, and vote tally.
 - b. Item 7.b.ii — closure of the NYOS Landing Rock investment account: the underlying account documentation, the resolution authorizing closure, and any related correspondence with the financial institution.
 - c. Item 7.b.iii — the Forbearance Agreement: the agreement itself, the counterparty, the underlying obligation being forborne, and any related correspondence or supporting analysis presented to the board.
3. Any board-packet documents distributed to trustees in advance of the December 10, 2024 and July 24, 2025 meetings — including draft contracts, fee schedules, scope-of-work summaries, financial-impact analyses, and written administration recommendations relating to any item identified above.
4. Any executive-session certification recorded under Texas Government Code § 551.103 for closed sessions held immediately before either vote, including the citation to the Government Code provision under which the closed session was convened.
5. Any written communication between NYOS staff or trustees and Dynamic Support Solutions / DSS Consulting Group concerning the contracts identified above, dated between November 1, 2024 and July 24, 2025.

Format and delivery

I request electronic copies of responsive records, delivered by email to the address above. Where original records exist only in physical form, electronic scans (PDF or comparable format) are acceptable.

Cost

Pursuant to Texas Government Code § 552.2615, please provide an itemized written estimate in advance of any charge that, in total, would exceed \$100.00. I am prepared to authorize production at or below that amount; above that figure, I ask to be contacted before work proceeds so that I may narrow the scope or authorize the additional cost.

Student information

This request does not seek personally identifiable student information. To the extent any responsive record incidentally contains information governed by the Family Educational Rights and Privacy Act (FERPA), please redact that information and produce the remainder.

Partial and rolling production

If any portion of this request is denied, withheld, or determined by NYOS to require an Attorney General ruling under Texas Government Code § 552.301, I respectfully ask that the remaining responsive records be produced on a rolling basis rather than the entire response being withheld pending resolution of any single category.

Acknowledgment

Please confirm receipt of this request at your earliest convenience. I understand that NYOS has 10 business days under § 552.221(d) either to produce the responsive records, certify a date by which production will occur, or seek an Attorney General ruling for any portion claimed exempt.

Thank you for your time and for the work your office does in fulfilling these requests.

Respectfully,

Mark A. Garcia

NYOS parent · *[Date: TBD]*